

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Ms. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on December 15, 2022. The complaint is directed against Mr. B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located in URBANIZATION ***ADDRESS.1, with indications of a possible breach of the provisions of Article 5.1.c) of the General Data Protection Regulation (hereinafter, GDPR).

The reasons supporting the complaint are as follows:

The complainant states that she is a neighbor of the respondent and that he has installed, on his property, a surveillance camera that is clearly oriented towards the complainant's property, without having authorization for it. She provides a report filed by the complainant with the National Police regarding these facts and images of the location and orientation of the disputed camera.

The documents submitted are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on January 27, 2023, as evidenced by the acknowledgment of receipt in the file. No response has been received to this forwarding letter.

THIRD: On March 15, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

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FOURTH: On April 25, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, being made available in its unique enabled electronic address (DEHu) and sent by postal mail, which was not collected by the responsible party. After reiterating the postal notification, it was finally published in the Official State Gazette (BOE) on May 24, 2023. It is also recorded that the notification was accepted in its DEHu on August 22, 2023.

After the period granted for the submission of allegations, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in this procedure,

PROVEN FACTS

SOLE: The video surveillance system of which the respondent is the owner captures images of spaces owned by third parties without the consent of their owners.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of the GDPR to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions...

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regulatory provisions issued in its development and, insofar as they do not contradict them, with a subsidiary character, by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection, therefore, is the subject of this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (image of individuals) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

III

Alleged infringement

Article 6.1 of the GDPR establishes the circumstances that allow the processing of personal data to be considered lawful.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that individuals or legal entities, public or private, may carry out the processing of images through systems of cameras or video cameras with the aim of preserving the safety of individuals and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing, only the relevant personal data that are pertinent and strictly necessary to fulfill the purpose for which they are processed may be processed. The processing must be adjusted and proportional to the purpose it is directed towards. Relevance in the processing of data must occur both at the moment of data collection and in the subsequent processing that is carried out. According to the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Bodies with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not obtain images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. And, in such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the aim of intimidating them or affecting their private sphere without a justified cause is not permitted.

Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

IV

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Individuals or legal entities, public or private, may establish a video surveillance system with the aim of preserving the safety of individuals and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

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2.- The images obtained may not be used for a purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be complied with.

In this regard, Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information shall be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

5.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The data controller must maintain a record of processing activities carried out under its responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to detect risks arising from the implementation of the video surveillance system, evaluate them, and, if necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

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A security breach is understood to be the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).

It is also of interest, in the case of carrying out low-risk data processing, the free tool Facilita (in the "Guides and tools" section), which, through specific questions, allows assessing the situation of the controller regarding the personal data processing it carries out, and if applicable, generating various documents, informative and contractual clauses, as well as an annex with minimum indicative security measures.

V

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 5.1.c) of the GDPR as classified in Article 83.5 of the GDPR. The sanction to be imposed is an administrative fine in the amount of €300 (THREE HUNDRED EUROS).

IV

Article 58.2 d) of the GDPR states that each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...". In this case, the reported party must proceed, within 10 working days from the receipt of this resolution, to remove the camera or video camera system from its current location or to reorient it, so that the viewing of the images observed evidences that no space of the claimant's residence or public road is captured.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of €300.00 (THREE HUNDRED EUROS).

SECOND: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within ten working days, adopt the following measure:

- Certify that the camera or video camera system has been removed from the current location or reoriented, in such a way that the viewing of the images evidences that no part of the claimant's residence or public road is captured.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, presenting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that certifies the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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